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MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (**·Agreement·**) is made and entered into as of May 15, 2025 (**·Effective Date·**), by and between Vortex Solutions, Inc., a Delaware corporation with principal offices at 1200 Meridian Parkway, Albany, NY 12205 (**·Vortex·**), and Arcadia Innovations LLC, a New York limited liability company with principal offices at 431 Broadway, Suite 300, New York, NY 10013 (**·Arcadia·**). Vortex and Arcadia shall hereinafter individually be referred to as a **·Party·** and collectively as the **·Parties·**.

WHEREAS, the Parties desire to engage in discussions related to a potential joint development project concerning advanced clean energy storage technologies (**·Purpose·**); and

WHEREAS, the Parties acknowledge that in connection with such discussions, it may be necessary to disclose certain confidential and proprietary information;

NOW, THEREFORE, in consideration of the foregoing and the mutual promises and covenants contained herein, the Parties agree as follows:

1. Definition of Confidential Information

1.1 For purposes of this Agreement, **·Confidential Information·** shall mean any and all technical and non-technical information provided by one Party (**·Disclosing Party·**) to the other Party (**·Receiving Party·**), whether orally, visually, in writing, or electronically, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information includes, without limitation, trade secrets, business plans, customer lists, technical data, inventions, software code, formulas, marketing strategies, financial information, and product plans.

1.2 Confidential Information shall not include information that:

- (a) is or becomes generally available to the public other than as a result of a breach of this Agreement;
- (b) was known to the Receiving Party prior to receipt from the Disclosing Party as evidenced by written records;
- (c) is rightfully received from a third party without restriction and without breach of any obligation; or
- (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

2. Obligations of Receiving Party

2.1 The Receiving Party shall hold and maintain the Confidential Information of the Disclosing Party in strict confidence and shall not disclose such information to any third parties except as expressly permitted by this Agreement.

2.2 The Receiving Party shall use the Confidential Information solely for the Purpose described above and shall not use it for any other purpose, including but not limited to commercial advantage or competitive purposes.

2.3 The Receiving Party shall restrict disclosure of Confidential Information to those of its employees, officers, or advisors who have a strict need to know such information in order to evaluate or further the Purpose and who are bound by confidentiality obligations no less restrictive than those set forth herein.

2.4 The Receiving Party agrees to take all reasonable measures to protect the confidentiality of the Confidential Information, at least the same degree of care as it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care.

3. Duration of Confidentiality Obligations

3.1 The Receiving Party's obligations with respect to any particular Confidential Information shall continue for a period of five (5) years from the date of disclosure of that Confidential Information, except where applicable trade secret law affords a longer period of protection.

3.2 Notwithstanding the foregoing, the obligations of confidentiality shall survive any termination or expiration of this Agreement.

4. Return or Destruction of Materials

4.1 Upon written request by the Disclosing Party, or upon termination of discussions related to the Purpose, the Receiving Party shall, within thirty (30) calendar days, return or destroy all documents and materials containing Confidential Information. At the Disclosing Party's request, the Receiving Party shall certify in writing that all such materials have been returned or destroyed.

5. No License or Ownership Rights

Nothing in this Agreement shall be construed as granting any rights, by license or otherwise, to any Confidential Information disclosed hereunder except as expressly set forth herein. All Confidential Information remains the sole and exclusive property of the Disclosing Party.

6. No Warranty

All Confidential Information is provided "AS IS." Neither Party makes any warranties, express or implied, as to the accuracy or completeness of any Confidential Information disclosed under this Agreement.

7. Remedies

7.1 The Parties agree that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages may be inadequate. Therefore, in addition to any other remedies available at law or equity, the Disclosing Party shall be entitled to seek injunctive relief to prevent or curtail any actual or threatened breach of this Agreement.

7.2 The failure to enforce any provisions of this Agreement by either Party shall not constitute a waiver of future enforcement of that or any other provision.

8. Governing Law and Jurisdiction

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The Parties agree that any disputes arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in Albany County, New York, and the Parties hereby consent to the jurisdiction and venue of such courts.

9. Term and Termination

9.1 This Agreement shall remain in effect for a term of three (3) years from the Effective Date, unless earlier terminated by either Party upon thirty (30) days' prior written notice to the other Party.

9.2 Termination of this Agreement shall not relieve either Party of its obligations with respect to Confidential Information disclosed prior to termination.

10. Miscellaneous

10.1 Entire Agreement. This Agreement constitutes the entire understanding between the Parties regarding the subject matter hereof and supersedes all prior negotiations, agreements, and understandings, whether written or oral.

10.2 Amendments. Any amendment or modification to this Agreement shall be effective only if in writing and signed by authorized representatives of both Parties.

10.3 Severability. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10.4 Assignment. Neither Party may assign its rights or obligations under this Agreement without the prior written consent of the other Party, except that a Party may assign this Agreement to a successor entity in the event of a merger or sale of substantially all assets.

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date.

VORTEX SOLUTIONS, INC.

By: _____

Name: Meredith J. Sinclair

Title: Chief Legal Officer

Date: May 15, 2025

ARCADIA INNOVATIONS LLC

By: _____

Name: Carlos M. Fernandez
Title: Managing Member
Date: May 15, 2025

EXHIBIT A - DESCRIPTION OF DISCLOSURE PROCESS

The Parties agree that all Confidential Information shall be clearly marked with the legend
·CONFIDENTIAL· at the time of disclosure. Oral disclosures shall be identified as confidential at
the time of disclosure and confirmed in writing within ten (10) business days.

NOTES:

- This Agreement notably excludes any clause specifically addressing data protection measures or compliance with data privacy laws such as GDPR, CCPA, or New York SHIELD Act requirements.
- The Parties acknowledge that the omission of explicit data protection provisions may affect their handling of personal data disclosed during the course of discussions.

Case Reference Number: NYSCD-10254-2025 (for potential dispute filings)